

The Assam Consolidation of Holdings Rules, 1966

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State of Assam - Act

The Assam Consolidation of Holdings Rules, 1966

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The Assam Consolidation of Holdings Rules, 1966

Rule THE-ASSAM-CONSOLIDATION-OF-HOLDINGS-RULES-1966 of 1966

Published on 30 December 1966

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The Assam Consolidation of Holdings Rules, 1966

Published vide Notification No. RRT 151/61/17, dated the 30th December, 1966

Last Updated 11th February, 2020

Notification No. RRT 151/61/17, dated the 30th December, 1966. - In exercise of the powers conferred by Section 33 of the Assam Consolidation of Holdings Act, 1960 (Assam Act No. XIX of 1961) the Governor of Assam is pleased to make the following rules for carrying out the purposes of the Act:

1.

Short title, extent and commencement.

- These rules may be called the Assam Consolidation of Holdings Rules, 1966. They shall come into force from the date on which and in the area in which the Assam Consolidation of Holdings Act, 1960 (Assam Act No. XIX of 1961), is brought into force.

2.

Definitions.

- In these rules unless the context requires otherwise-

(1)

'Act' means the Assam Consolidation of Holdings Act, 1960 (Assam Act No. XIX of 1961).

(2)

'Section' means a section of the Act.

(3)

'Form' means a form appended to these Rules.

3.

Declaration for publication of a scheme of consolidation.

- The declaration under Section 3 shall be in Form I.

4.

Manner of constitution of the Consolidation Advisory Committee.

(1)

If the area specified under Section 3 is covered by one Gaon Panchayat-the Gaon Panchayat ; and if covered by more than one Gaon Panchayats-the Anchalik Panchayat, shall be the Consolidation Advisory Committee for the said area.

(2)

Consolidation Advisory Committee constituted under sub-rule (1) shall be notified in the official Gazette in Form II and shall also be published in the offices of (A) Gaon Panchayats, (b) Anchalik Panchayats, (c) Consolidation Officers, (d) Collector, and (e) Sub-Deputy Collector.

5.

Manner of publication of draft scheme.

(1)

The draft scheme shall be published for 30 days at the office of the Consolidation Officer, copy of which shall also be displayed at any conspicuous place of the village/villages. A general notice to this effect shall be published at all conspicuous places of the village/villages at least 7 days before the date on which the publication of the scheme commences. A copy of the notice shall also be endorsed to every tenant and sub-tenant 7 days before the commencement of publication of the draft scheme.

(2)

During the period of publication every facility shall be given to the tenants and sub-tenants concerned to inspect the records and wherever necessary the scheme shall be explained to them by the Consolidation Officer or any other Officer authorised by him.

6.

Manner of publication of approved scheme in the village.

- Copy of the Final Scheme in the regional language of the area concerned and the date of enforcement shall be published in each village in the same manner as laid down in Rule 5.

7.

Manner of payment and realisation of compensation.

(1)

If the market value of a new holding allotted to any owner is less than that of his original holding compensation for the deficiency in the market value of the new holding shall be paid in two instalments. If the amount of compensation payable exceeds rupees five thousand in any case the first instalment shall not be less than five thousand. The balance of compensation payable shall be paid after 90 days from the date of payment of the first instalment.

(2)

If the market value of the new holding is greater than that of the original holding the compensation payable for the excess market value of the new holding over the original holding shall be paid by the owner/owners concerned in instalments within 30 days as shown below from the date of taking over possession of the new holding(s)-

(i)

when the amount of compensation payable by an individual owner does not exceed rupees five hundred, the amount shall be paid in one instalment;

(ii)

when the amount exceeds rupees five hundred but does not exceed rupees one thousand the amount shall be paid in two Instalments, the first instalment being rupees five hundreded ;

(iii)

when the amount exceeds rupees one thousand but does not exceed rupees two thousand five hundred, it may be paid in three instalments, the first instalment being rupees five hundred and the balance in two instalments.

Form I

[See Rule 3]

Notification for preparation of Scheme of Consolidation of Holdings

In exercise of the powers conferred by Section 3 of the Assam Consolidation of Holdings Act, 1960 (Assam Act No. XIX of 1961), Governor of Assam, on the representation of the owners desiring consolidation of land in area on his own motion, is pleased to declare that a scheme for consolidation of holdings shall be prepared for the area specified in the schedule-

Schedule

District/ Sub-division

Circle

Mouza

Village

Remarks

1

2

3

4

5

Form II

[See Rule 4]

Notification for constitution of Consolidation Advisory Committee

In exercise of the powers conferred by Section 4 of the Assam Consolidation of Holdings Act, 1960 (Assam Act No. XIX of 1961), the Governor of Assam is pleased to constitute Gaon Panchayat established under the Assam Panchayat Act, 1959 as Anchalik Panchayat.

Consolidation Advisory Committee for the area specified below in the district of for the purpose of advising and assisting the Consolidation Officer in preparing and implementing the scheme of consolidation in the said area:

Particulars of the area :

(1)

Name of the village

(2)

Circle.....

(3)

Mauza.....

(4)

N.E.S. Block.....

Name of members

12345678910

Form III

[See Rule 5(1)]

General Notice under Rule 5(1)

For publication at village/villages.....Mouza.....P.S.

To Whomsoever it May Concern

Whereas a draft scheme for consolidation of holdings of the said village/villages has been prepared under Section 5 of the Assam Consolidation of Holdings Act, 1960 :

And whereas objections under Section 9 of the Act, received within 30 days from the date of publication of the draft

scheme shall only be entertained ;

Therefore, it is notified for general information that the said draft scheme shall be published at the office of the undersigned and also in the said village/villages on..... and the publication shall be kept open for inspection of the person interested or concerned for 30 days and upto.....

Place.....

Date.....

Consolidation Officer

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